7 LEGAL DESCRIPTIONS

DEFINITIONS

1. A description of land by the consecutive reference to courses and distances around its perimeter is called which of the following?

(A) a bounds description
(B) a plat description
(C) an aliquot description
(D) a metes and bounds description

Solution: While the term *metes and bounds* might be considered archaic, it is still widely used and understood. Metes means measurement or the assignment of measurement, and bounds refers to boundary monuments, both physical and legal.

Answer is (D)

2. The first point described in a metes and bounds description is often called the *point of beginning*. Which of the following would be characteristic of a good point of beginning?

(A) Its identity is clear and certain in the field.
(B) It has greater standing than any other corner recited in the description.
(C) The destruction of its monumentation will void the description.
(D) It is a standard section corner.

Solution: The choice of the point of beginning is based on the ease and certainty of its identification, not a desire to give it more standing than any other corner in the description. Both its legal relationship to other monuments and its own physical attributes should be part of its description to aid in its identification.

Answer is (A)

3. When the phrase "more or less" follows a measurement in a description, which of the following best describes its meaning?

(A) The measurement has never been made.
(B) The measurement is intended to extend to the next recited monument whether or not, in fact, it is sufficient to do so.
(C) The words are a warning signal that the measurement is suspected to be in conflict with other information.
(D) The words are of no real significance.

Solution: More or less is a cautionary signal in a description. The scrivener has reason to believe that the measurement may not be accurate. When a tie is made in description to a monument or is a matter of record, the tie holds without the phrase "more or less."

Answer is (C)

4. A latent ambiguity in a legal description can frequently be cured by evidence not contained in the instrument itself. Which of the following terms can be used to describe such evidence?

(A) inculpatory evidence
(B) extrinsic evidence
(C) autotopic evidence
(D) adminicular evidence

Solution: Evidence not contained in the description is external or extrinsic. Another appropriate term would be *evidence aliunde*.

Answer is (B)

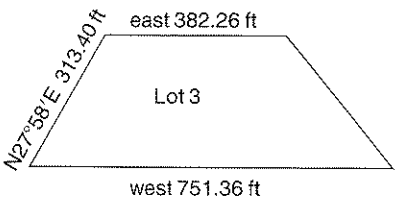
5. The word *adjoining* is correctly used in a description when the intended meaning is which of the following?

(A) adjacent to
(B) parallel with
(C) coincident with
(D) prolonging

Solution: Adjoining is correctly used to indicate actual contact, unlike adjacent, which implies proximity but not contact. This distinction can be significant in construing the intended meaning of the words used in a description, especially before a court of law.

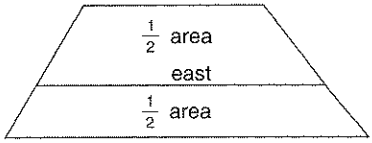
Answer is (C)

6. The northern and southern boundaries of Lot 3 of the Valhalla Acres subdivision are found to be parallel, while the eastern and western boundaries are not.



The owner of this trapezoidal lot wishes to convey the northern half. Which of the following statements best reflects the meaning of the northern half in this context?

(A) The southern boundary of the northern half would connect the midpoints of the eastern and western boundaries of the lot.
(B) The southern boundary of the northern half would be the cardinal line, parallel with the northern and southern boundaries of the lot, which divides the area into halves.
(C) The area of the lot is not a consideration in this division.
(D) Any line may divide the lot into halves, so the phrase "the northern half" is insufficient for a satisfactory determination of the division.



Solution: In such proportional descriptions, the area of the parcel is the contro ling consideration. While it is true that many lines may divide the lot in questic into halves, the phrase "the northern half" is sufficient in such a circumstanc It is generally understood to mean that the line will be parallel with the parall sides and will divide the lot into equal areas.

Answer is (B)

7. A legal description reads, in part, "the N$\frac{1}{2}$ of the NW$\frac{1}{4}$ of Section 9, T12N R68W, of the 6th PM." Which answer best describes the meaning of one-half i this circumstance?

(A) It should be construed without consideration of area.

(B) The southern boundary of the north one-half should be established b quarter-quarter corners.

(C) The dividing line depends on the establishment of the midpoint of th east and west boundaries of the northwest quarter of Section 9.

(D) A, B, and C are true.

Solution: The sectionalized lands in the Public Land Surveying System are sub divided by the rules set forth in the 1973 *Manual of Instructions for the Survey c Public Lands*. These rules provide for the establishment of subdivisions of aliquo parts, halves, and quarters, without regard to area.

Answer is (D)

8. The phrase "bounded on the south by the Zupta Tract, as recorded in book 51, page 18, of maps" appears in a legal description. Which statement would describe this call?

(A) It is a call for a senior boundary on the south.
(B) It is a call for a record monument that includes the Zupta Tract in its entirety.
(C) It is a call for a record monument that includes only the line common to both the Zupta Tract and the property being described.
(D) It is a call that depends on the location of monuments in the field marking the common line.

Solution: The reference to an adjoiner of record is often characterized as a call for a record monument. A record monument frequently has senior standing. The call for a record monument includes the entire adjoining tract, not only the shared line.

Answer is (B)

9. Consider a four-sided parcel, where none of the sides are parallel or perpendicular with one another. Which of the following phrases would describe a tract with a width of 50 ft whose easterly boundary would be parallel with the parcel's westerly line?

(A) the westerly 50 ft
(B) the westerly 50 ft measured along the north boundary
(C) the westerly 50 ft measured along the north and south boundaries
(D) both A and B

Solution: The westerly 50 ft is, by definition, measured at right angles from the westerly line of the parcel. Furthermore, the eastern boundary of the westerly 50 ft would be assumed to be parallel with the western boundary of the original parcel. Since the boundaries of the parcel are not perpendicular, measurement along the north and south boundaries will not yield parallel lines.

Answer is (A)

10. A legal description that contains the phrase "to a point of cusp" refers to which of the following?

(A) a point of intersection between two curves of opposite direction
(B) a point of intersection of a quarter section line with a meander line
(C) a point where a corner monument has been lost
(D) the point of beginning of an easement

Solution: A point of cusp is the intersection of two curves or a curve and a line of opposite direction.

Answer is (A)

PRIORITY OF CALLS

11. Conflicting elements in a description sometimes cause difficulty in determining which calls are locative and which are merely informative. What is the intent of a description that contains the call "... thence N89°45′W 664.57 ft along the south line of said Section 15 to the SW corner thereof"?

(A) The described line must be N89°45′W, but the distance may be shortened or lengthened to terminate at the SW corner of Section 15.
(B) The distance must be 664.57 ft, but the bearing of the south line of the section may vary from N89°45′W, and the section line must be followed.
(C) The line must follow the section line and end at the section corner, regardless of the bearing and distance.
(D) The line must proceed at the described bearing, N89°45′W, for the described distance, 664.57 ft, regardless of the location of the section line or the section corner.

Solution: In most jurisdictions, both distance and direction are subordinate to verifiable corner monuments. The underlying principle is the belief that monuments are more likely than measurements to reflect the intention of the description unambiguously. The section line is a record monument and is also superior to a measured bearing.

Answer is (C)

12. On its face, a particular metes and bounds description is clear, concise, and unambiguous. However, a subsequent survey of the parcel uncovers several conflicts between the elements of the description and the measurements. In general, which of the following elements would be the most subordinate?

(A) a call for a natural monument
(B) a call for a direction
(C) a call for a distance
(D) a call for an area

Solution: While it is possible to cause a specified area to become a controlling element of a description, such as "the north 10 ac of," generally the area is subordinate. Courts have held that where both a metes and bounds description and a quantity of land are given, the former will control. The principle is based upon the idea that area by itself does not indicate the location of specific boundaries, as a detailed perimeter description does.

Answer is (D)

13. A grantor of land in adjoining Sections 9 and 10 wished to convey his non-aliquot holdings in Section 9 alone. This was stated in the general language of the deed description; however, the specific metes and bounds description that followed included some of his land in Section 10 as well. The deed has been properly executed and the grantee claims property in both sections. Which statement most correctly describes this situation?

(A) The grantor will find that the specific description will be given greater effect than the general one. The grantee was probably deeded land in Section 10.
(B) The deed description will be construed in favor of the grantee, since it is presumed that the grantor chose the language used. The grantee was probably deeded land in Section 10.
(C) If the grantor did not intend to convey the land in dispute, he cannot be forced to do so. The grantee probably was not deeded land in Section 10.
(D) Both A and B are true.

Solution: Since the property in question was not aliquot, the most specific description—the metes and bounds description—will have greater weight than the general one. While the intentions of the parties to a deed is the paramount

consideration in resolving conflicting title elements, those intentions must be clearly discernable from the written words of the instrument. The clearest words are those that are most specific. It is also a well-settled principle that private grants are interpreted in favor of the grantee.

Answer is (D)

14. A legal description, even one containing conflicting elements, may be said by a court to be sufficient. Which answer best defines this meaning of the word *sufficient*?

(A) considered adequate by the parties to the deed
(B) acceptable for recordation by the county clerk
(C) capable of being located on the ground by a competent surveyor
(D) appropriate for adjudication

Solution: Written descriptions are considered sufficient when a competent surveyor can locate the property certainly and unambiguously on the ground, with or without extrinsic evidence.

Answer is (C)

15. In the event of a conflict within a legal description containing the following elements, which would most probably be presumed superior to the others?

(A) a called-for monument found undisturbed
(B) a specified state plane coordinate
(C) a direction expressed to the nearest second
(D) a distance recited to the thousandth of a foot

Solution: The superiority of called-for, identifiable, and undisturbed monuments over the other elements is based upon the assumption that they are the most certain in fixing the location of a line or corner. There are limitations to the control of monuments when they can be shown to be disturbed or are not called for

in the description. Generally, however, they are considered superior to distance, direction, area, and coordinates.

Answer is (A)

16. A surveyor writing the description of a newly created parcel adjoining a long established right-of-way noted the following.

> ... thence N45°15′W 152.67 ft to a 4-in by 4-in concrete monument on the southeasterly line of the Southern Pacific Railroad right-of-way; thence S45°33′W 459.20 ft along said railroad right-of-way line to a 4-in by 4-in concrete monument; thence northeasterly to the point of beginning. Tract contains 0.82 ac.

Should conflicts arise between the aspects of this portion of the description, which will most likely outweigh the others?

(A) the 0.82 ac
(B) the Southern Pacific Railroad right-of-way
(C) the bearings N45°15′W and S45°33′W
(D) the distances 152.67 ft and 459.20 ft

Solution: Bearings and distances are generally held to be superior to a recited area, and identified, undisturbed artificial monuments are superior to bearings and distances. However, all of these are considered subordinate to a senior adjoiner. In the description quoted, the southeasterly line of the Southern Pacific Railroad would outweigh the other elements in case of a conflict.

Answer is (B)

17. While retracing the following description, a surveyor finds and verifies the called-for aluminum caps, as well as the truck axle.

> ...thence from a found #5 rebar with a 2-in aluminum cap stamped "Tract Corner 1," N52°10′E 495.20 ft to an old truck axle; thence N35°58′W 597.31 ft to a found #5 rebar with a 2-in aluminum cap stamped "Tract Corner 3."

The truck axle is found to be located N52°10′E 505.20 ft from tract corner 1 and S35°58′E 597.29 ft from tract corner 3. What should the surveyor do?

(A) Intersect the distances.
(B) Use the bearings and distances and ignore the truck axle.
(C) Use the 495.20-ft distance, which best retraces the footsteps of the original surveyor.
(D) Use the location of the truck axle where it has been found.

Solution: A found, verified original monument is generally considered a more reliable indication of the intentions expressed in the description than any measurements associated with it.

Answer is (D)

18. Although exceptions may arise, which of the following reflects the priority of calls most often used in interpreting legal land descriptions?

(A) artificial monuments, natural monuments, direction, distance, and area
(B) natural monuments, artificial monuments, direction, distance, and area
(C) date of survey, area, artificial monuments, natural monuments, and coordinates
(D) direction, distance, area, coordinates, and artificial monuments

Solution: Any ranking of the priority of calls is an oversimplification; exceptions can always be found. However, the guiding principle of the superiority of elements that are most likely to reflect the original intentions supports the order given in answer (B).

Answer is (B)

19. During the retracement of a description in the field, a surveyor finds a fence that appears to be of long standing nearly 12 ft east of the western boundary described in the client's deed. This apparent encroachment extends along the entire length of the property.

An investigation uncovers clear evidence of an unwritten right in property. If the encroachment is subsequently found to be a valid right of possession, what would be its relative importance with respect to the calls of the written description?

(A) It would be inferior to all the elements of the written description.
(B) It would be superior to all the elements of the written description, except a senior right.
(C) It would be superior to all the elements of the written description, as well as a senior right.
(D) The fence would be considered superior to any distances and directions in the description, but inferior to any called-for found monuments.

Solution: A valid right of possession that has ripened by unwritten means is considered superior to all other private rights.

Answer is (C)

20. When two adjoining descriptions are unambiguous and correct on their faces but are found to be overlapping in the field, which solution is most likely correct? One parcel is junior to the other.

(A) The overlap belongs to the senior parcel.
(B) The overlap is equitably proportioned between the parcels, regardless of seniority.
(C) The solution is completely dependent on the extent of the overlap.
(D) The overlap belongs to the senior parcel, unless monuments called for in the junior description would be violated.

Solution: A senior right is superior to all other written rights when interpreting a legal description.

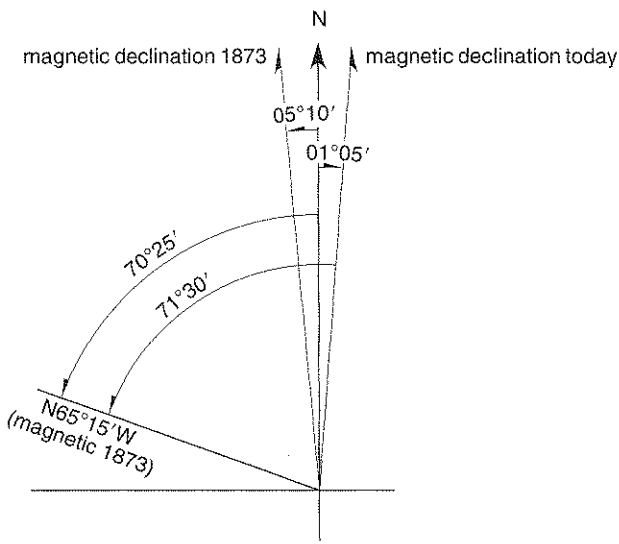
Answer is (A)

BASIS OF BEARINGS AND DIRECTIONS

21. A description written in 1873 using magnetic bearings calls for a direction of N65°15′W on its first course. The magnetic declination was 5°10′W at the time the description was written. The magnetic declination today at the same place is 1°05′E. What would be the magnetic bearing of the line today?

(A) N61°10′W
(B) N55°00′W
(C) N71°30′W
(D) N68°15′W

Solution: A sketch is useful for solving this problem.



The illustration indicates that the bearing of the line is found by adding the 1873 magnetic bearing to its declination.

$$\begin{array}{r} \text{N}65^\circ 15'\text{W} \\ \underline{+05^\circ 10'} \\ \text{N}70^\circ 25'\text{W} \end{array}$$

Today's easterly declination is then added to the true bearing to find the magnetic bearing today.

$$\begin{array}{r} \text{N}70^\circ 25'\text{W} \\ \underline{+01^\circ 05'} \\ \text{N}71^\circ 30'\text{W} \end{array}$$

Answer is (C)

22. The body of a description opens, "Beginning at the SE corner of said Section 12, thence north along the east section line to the NE corner of the SE$\frac{1}{4}$ thereof, thence . . ." Which answer best describes the meaning of *north* in the description?

(A) magnetic north at the time of the original survey of Section 12
(B) astronomic north
(C) geodetic north
(D) the line described by the section corner and the quarter corner

Solution: The use of the word *north* is open to many possible interpretations, and without other qualifications, can easily lead to ambiguity in a description. Here, there are other qualifications that make the word definite. The SE corner of the section and the NE corner of the SE quarter of the section define the line clearly.

Answer is (D)

23. Directions in a description may be expressed in azimuths. Which statement correctly applies to this use of azimuths?

(A) The direction of a line is measured from 0° through 360° from a reference meridian.
(B) A description will express directions with azimuths or bearings, but never both.
(C) An azimuth may be measured from north or south.
(D) Both A and C are true.

Solution: Azimuths are measured through 360° from a reference meridian, either north or south. It is quite possible to find a combination of several methods of defining direction in one description.

Answer is (D)

24. While writing a land description, a surveyor wishes to express the direction of a line that is known only generally. The line has an azimuth somewhere between 280° and 285°. Which of the following words expresses the direction most clearly and concisely?

(A) westerly
(B) an azimuth of 282°30′
(C) southwesterly
(D) northwesterly

Solution: Westerly, northwesterly, southwesterly, etc., are used to define sectors of the compass embracing approximately 45° of arc—$22\frac{1}{2}$° on each side of the named direction. Since the direction to be expressed is within 15° of west, the best word to use is westerly.

Answer is (A)

25. A description includes the phrase "... thence deflecting to the right 43°31′." Which answer best describes the meaning of the phrase?

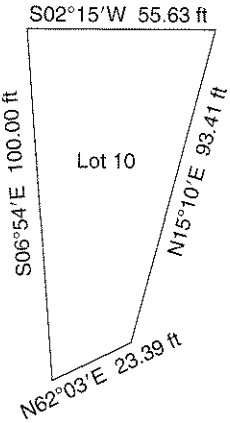
(A) an angle of 43°31′ measured counterclockwise from the preceding course to the next one
(B) an angle of 223°31′ measured from north, clockwise to the next course
(C) an angle of 43°31′ measured clockwise from the preceding course to the next one
(D) an angle of 43°31′ measured to the right from the prolongation of the preceding line

Solution: The word *deflecting* is meant to indicate a deflection angle. A deflection angle is measured from the prolongation of the previous course, to the right or left, by the specified amount.

Answer is (D)

"OF" DESCRIPTIONS

The following two problems refer to the illustration shown.

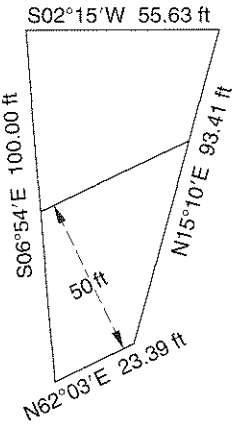


26. The owner of the lot shown intends to convey the property described as "the southerly 50 ft of Lot 10." Which of the following methods will best satisfy the intention of the description?

(A) The dividing line should begin at the midpoint of the westerly lot line.
(B) The dividing line should split the lot into two parts of equal area.
(C) The dividing line should be parallel with the southerly line of the lot and 50 ft from it, measured along the westerly line.
(D) The dividing line should be parallel with the southerly line of the lot and 50 ft from it, measured perpendicularly.

Solution: When a description calls for a partition with a linear dimension, it is assumed to indicate that the measurement is at right angles to the boundary

from which the measurement is made. The division line is assumed to be parallel with the line from which it is described. These assumptions are based on the principle of construction, which gives greatest favor to the grantee.



Answer is (D)

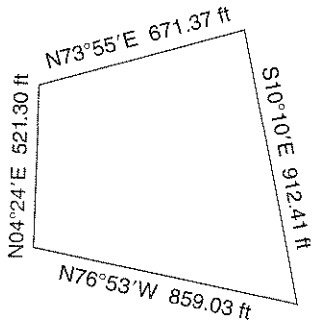
27. After conveying the southerly 50 ft of Lot 10, the owner wishes to sell the remaining portion of the lot. Which language would best express this intention?

(A) the northerly 50.36 ft of Lot 10, measured along the westerly line
(B) the north 50 ft of Lot 10
(C) the north half of Lot 10
(D) all of Lot 10, except the southerly 50 ft

Solution: Describing the remainder of Lot 10 in relation to the northern line of the lot would create a line parallel with the northern lot line, which would be in conflict with the partition already established. A safer approach is to describe the remainder by exception. Describing the conveyance as Lot 10, except that which has already been separated, minimizes the chances of conflict.

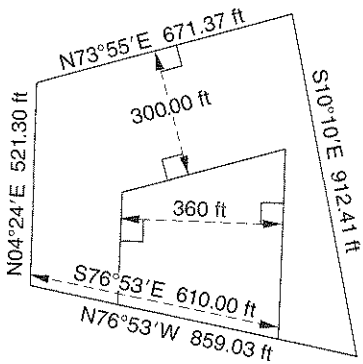
Answer is (D)

28. The lot shown was divided using the description "the easterly 360 ft of the westerly 610 ft measured along the south line of the lot, except the northerly 300 ft."

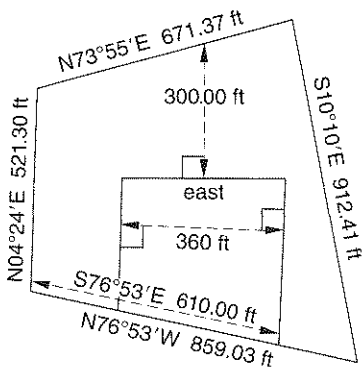


Which of the following illustrations indicates the correct partitioning?

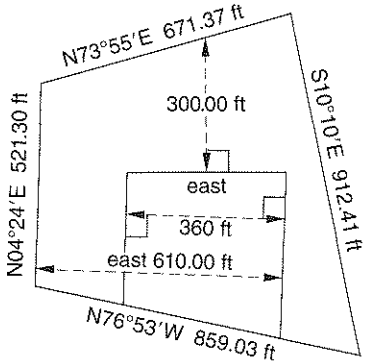
(A)



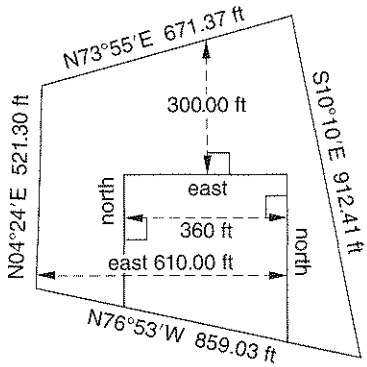
(B)



(C)



(D)



Solution: The eastern and western boundaries of the cutout must be parallel with the western boundary of the lot. The northern boundary of the cutout parcel must be parallel with the northern boundary of the lot. The description requires that the measurements be perpendicular to the sides, except the 610.00 ft, which is specifically described as being measured along the southerly line.

Answer is (A)

29. Which of the following statements best defines the meanings of the phrase "the east half of" as it would be used to describe a partitioning in private lands and its use to describe such partitioning in public, as opposed to private, lands?

(A) In private lands, it would mean one-half of the area of the parcel involved.
(B) In public lands, it would indicate the connection of the midpoint of the northern boundary with the midpoint of the southern boundary, in most cases.
(C) Strictly speaking, any of a number of lines may divide private land into halves, whereas the dividing line is strictly defined in public lands.
(D) A, B, and C are true.

Solution: Public lands are divided into aliquot parts, or halves and quarters, in accordance with strictly defined rules. Private lands are divided by area into proportional parts. The direction of the dividing line in private lands is less certain than it is in public lands.

Answer is (D)

30. In a four-sided lot that contains no right angles and no curved sides, which language would convey the maximum area to a grantee?

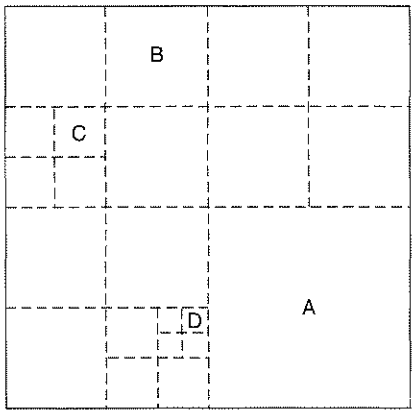
(A) the west 50 ft of...
(B) the west 50 ft measured along the north line of...
(C) the west 50 ft measured along the south line of...
(D) the west 50 ft measured along the north and south line of...

Solution: "The west 50 ft of" indicates a measurement of 50 ft perpendicular to the western boundary. Since the lot contains no right angles, measuring 50 ft along the north or south line would convey a smaller area.

Answer is (A)

PUBLIC LAND SURVEYING SYSTEM DESCRIPTIONS

The following five problems refer to the illustration shown.



SEC. 15, T3N, R10W, 6th PM

31. Which of the following best describes the part of Section 15 labeled A?

(A) SE$\frac{1}{4}$ Sec. 15, T3N, R10W, 6th PM

(B) Beginning at the E$\frac{1}{4}$ corner of Sec. 15, T3N, R10W, of the 6th PM; thence south along the east line of said section to the SE corner thereof; thence west along the south line of said section to the S$\frac{1}{4}$ corner thereof; thence north along the centerline of said section to the C$\frac{1}{4}$ thereof; thence east to the point of beginning.

(C) E$\frac{1}{2}$ of the E$\frac{1}{2}$ Sec. 15, T3N, R10W, of the 6th PM

(D) SW$\frac{1}{4}$ of Sec. 15, T3N, R10W, of the 6th PM

Solution: Brevity is a virtue in writing legal descriptions, as long as clarity is not sacrificed. Aliquot parts of the Public Land Surveying System are better described by abbreviation than by metes and bounds. The rules of partition of public lands are so well defined that reference to aliquot parts is both concise and unambiguous.

Answer is (A)

32. Which of the following best describes the area labeled B?

(A) NE$\frac{1}{4}$ of the NE$\frac{1}{4}$ of Sec. 15, T3N, R10W, of the 6th PM
(B) NW$\frac{1}{4}$ of the NW$\frac{1}{4}$ of Sec. 15, T3N, R10W, of the 6th PM
(C) NE$\frac{1}{4}$ of the NW$\frac{1}{4}$ of Sec. 15, T3N, R10W, of the 6th PM
(D) NE$\frac{1}{4}$ NW$\frac{1}{4}$ Sec. 15, T3N, R10W, 6th PM

Solution: Both (C) and (D) are correct; however, (D) is more concise.

Answer is (D)

33. Which of the following fractions is the correct unit of subdivision for the area labeled C?

(A) $\frac{1}{4}$
(B) $\frac{1}{8}$
(C) $\frac{1}{16}$
(D) $\frac{1}{64}$

Solution: The fractions commonly used to define the aliquot parts of a section are based on proportional area. The area labeled C is approximately 10 ac of area. A full standard section contains 640 ac. Therefore, C would be called a 1/64th.

Answer is (D)

34. Which of the following best describes the area labeled D?

(A) NE$\frac{1}{4}$ NE$\frac{1}{4}$ SE$\frac{1}{4}$ SW$\frac{1}{4}$ Sec. 15, T3N, R10W, 6th PM
(B) NE$\frac{1}{4}$ NW$\frac{1}{4}$ SW$\frac{1}{4}$ SE$\frac{1}{4}$ Sec. 15, T3N, R10W, 6th PM
(C) NE$\frac{1}{4}$ NE$\frac{1}{4}$ SE$\frac{1}{4}$ SE$\frac{1}{4}$ Sec. 15, T3N, R10W, 6th PM
(D) NE$\frac{1}{4}$ NW$\frac{1}{4}$ SE$\frac{1}{4}$ SW$\frac{1}{4}$ Sec. 15, T3N, R10W, 6th PM

Solution: The aliquot part labeled D is a 1/256th. It is correctly described by answer (A).

Answer is (A)

35. Assuming a standard section, what is the approximate total area of the aliquot parts labeled in the illustration?

(A) 530 ac
(B) 425 ac
(C) 212.5 ac
(D) 106$\frac{1}{4}$ ac

Solution: The aliquot parts labeled in the illustration have the following approximate areas.

A = 160 ac
B = 40 ac
C = 10 ac
D = 2.5 ac

Their sum is 212.5 ac.

Answer is (C)

36. The description "the E$\frac{1}{2}$ of Lot 2, Sec. 6, T6S, R96W, 6th PM" is best characterized by which of the following statements?

(A) It is a description of an aliquot part of Section 6.
(B) It is a description that calls for the division of Lot 2 by area.
(C) It is not a description of an aliquot part of Section 6.
(D) Both B and C are true.

Solution: An aliquot part of a section in the Public Land Surveying System is one-half or one-quarter of the larger division. By definition, lots created from fractional sections are not aliquot parts, nor are they proportional parts. The description given calls for the division of Lot 2 by area.

Answer is (D)

37. Which of the following best categorizes the description "the SW$\frac{1}{4}$ Sec. 4, T8N, R33W, SBM"?

(A) metes and bounds description
(B) strip description
(C) acreage description
(D) subdivisional description

Solution: Rectangular surveys were begun in 1785 to subdivide the public domain into manageable parts. The process continues today with well-defined procedures by which that subdivision is accomplished. One of the benefits of the system is the ease and certainty with which those subdivisions can be described.

Answer is (D)

38. A description of a parcel within Sec. 4, T2S, R3W Ute Meridian is said to be "bounded on the south by Original Creek, a nonnavigable stream." The 1974 township plat indicates that Original Creek has been meandered. Which statement best describes the location of the south boundary of the parcel?

(A) the thread, or middle, of the stream
(B) the meander line
(C) the high water line; nonnavigable streams are never meandered
(D) a straight line connecting the meander corners

Solution: Meander lines are not legal boundaries, unless expressly made so. They are intended to determine the area of bodies of water, not to define title. Nonnavigable streams over 3 chains wide are meandered under current instructions, but the boundary, in most cases such as this, is the thread of the stream.

Answer is (A)

39. In researching a chain of title, a surveyor finds that land patented in a particular township in 1919 as an aliquot part is now designated by the tract number 37. An official resurvey of the township was conducted in 1980. What type of survey was it?

(A) a retracement
(B) a dependent resurvey
(C) a contract survey
(D) an independent resurvey

Solution: A dependent resurvey would not have resulted in changing the aliquot designation of patented lands. However, an independent resurvey would, most often, protect bona fide rights within the township by creating tracts. Their numbers would begin at 37 to avoid confusion with the section numbers.

Answer is (D)

40. A surveyor has recently measured the perimeter of the NW quarter of a particular section in order to prepare a legal description. The description will cover only a portion of a quarter-quarter section. The record courses and distances returned decades ago by the original surveyor differ significantly. How would this discrepancy be reconciled in the description?

(A) The recent measurements are more apt to be correct; there is no need to use the original measurements at all.

(B) The establishment of the quarter-quarter section will require using a proportional relationship between the recent measurements and those of the original survey.

(C) The original measurements are officially accepted as correct and cannot be changed. The original survey information must be used.

(D) The discrepancy cannot be resolved.

Solution: Use proportional measurement. The original survey is presumed to be a correct representation of the distances and directions found using the instrumentation available at the time. The standard of measurement may be different, but the measurements are assumed to have been made between the same corners as those of the original survey.

Answer is (B)

DESCRIPTIONS WITHIN A SUBDIVISION

The following two problems refer to the description given.

> Lot 3, Block 12 in the Sedgwick Subdivision in the city of Huron, county of Beadle, state of South Dakota, as per map recorded in Book 17, Page 32, of Maps in the office of the County Recorder of said County.

41. The language given satisfies which of the following ideas?

(A) a description that is unlikely to be subject to senior rights of an adjoiner

(B) an adequate caption for a metes and bounds survey that should be followed by perimeter description of the lot

(C) a complete description of a lot that includes, by reference, all of the information available on the subdivision plat

(D) both A and C

Solution: Lot 3 is part of a simultaneous conveyance in which all of the lots of the Sedgwick Subdivision were created at the same moment. The recording of the subdivision plat provided a record monument to which the description refers. That reference incorporates all the information available on the plat into the description given; it is not necessary to recount it to make the description sufficient. The description is sufficient as it stands.

Answer is (D)

42. Lot 3 is bounded on the south by Utah Street. The street was originally established by the Sedgwick Subdivision plat. There is some talk that Utah Street may have been formally abandoned. What rights, if any, will the owner of the lot have in the roadbed of the old public way if the street has been abandoned?

(A) None; there is no mention of Utah Street in the description. If the grantor had wanted to convey title to the street, it should have been clearly expressed.

(B) Unless the contrary is clearly expressed, Lot 3 has always held, and still holds, title to the middle of the street, whether Utah Street has been abandoned or not.

(C) The owner of Lot 3 could acquire title to the roadbed only after it has been abandoned by the public.

(D) A metes and bounds description might have extended ownership to the center of the street, but the current description cannot possibly do so.

Solution: A conveyance bounded by a public street carries title to the center of that street. If the contrary is intended and the street is to be excluded, it must be clearly stated. Were Utah Street abandoned as a public street, the underlying fee interest of the adjoining owners would remain and the roadbed would revert to them.

Answer is (B)

METES AND BOUNDS DESCRIPTIONS

43. The fundamental parts of a metes and bounds description, the caption and the body, are often followed by qualifications, exceptions, and/or reservations. Which statement correctly describes the functions of these parts?

(A) The caption of the description is general, and the more detailed portion of the description is the body.

(B) An exception is used to exclude a portion of what has been described.

(C) A reservation is used when a grantor wishes to retain a right that would otherwise pass. A new encumbrance is created on the property by a reservation.

(D) A, B, and C are true.

Solution: The caption of a description limits the title, and the body provides more detailed information. Exceptions and reservations are not synonymous: the first cuts off, while the second holds back. Reservations usually create new encumbrances to be retained by the grantor; an easement right would be an example of this.

Answer is (D)

44. Consider the following portion of the description of Lot 1 of the Newmark Tract.

> ...thence S10°10′E along the easterly line of Lot 1 912.41 ft to a point; thence N76°53′W 859.03 ft to a point; thence N04°24′E 521.30 ft to a point; thence S73°55′W 671.37 ft to the point of beginning.

Which of the following statements points to errors in this portion of the description?

(A) The direction of travel is wrong on the last course; it should be north and east in order to maintain the clockwise direction of the other calls.

(B) The distance 912.41 ft should follow the direction S10°10′E, without the phrase "along the easterly line of Lot 1" standing between them. The distance could be misread as 1912.41 ft.

(C) The phrase "to a point" is redundant and unnecessary, and should be eliminated.

(D) A, B, and C are true.

Solution: The direction of travel should be consistent in a metes and bound description. It is good practice to bring the direction and distance together t avoid unnecessary ambiguities. The phrase "to a point" is unnecessary. If monument stands at the intersection of the lines, it should be described.

Answer is (D)

45. A metes and bounds description was prepared, inadvertently including a small area of land the grantor did not own. The grantor did have clear title to most of the land described, but not all. The deed containing this description had already been executed when the error was discovered. Which of the following statements applies to this situation?

(A) The deed will be considered void.
(B) The deed will most likely not be considered void.
(C) The instrument will probably pass title to the portion of the land that the grantor owned, but not to the land he did not own.
(D) Both B and C are true.

Solution: When a description includes land to which the grantor has title along with land to which he has none, the former will be conveyed and the latter will not. Generally, a deed will be construed to pass title when any reasonable construction will do so.

Answer is (D)

DESCRIBING CURVES

46. The elements of a plane circular curve include its length, radius, tangent, and central (delta) angle. How many of these elements are needed to define a unique curve?

(A) one
(B) any two
(C) any three
(D) all four

Solution: Any two of the elements given will describe a unique curve. Frequently, three elements are given, but two are adequate.

Answer is (B)

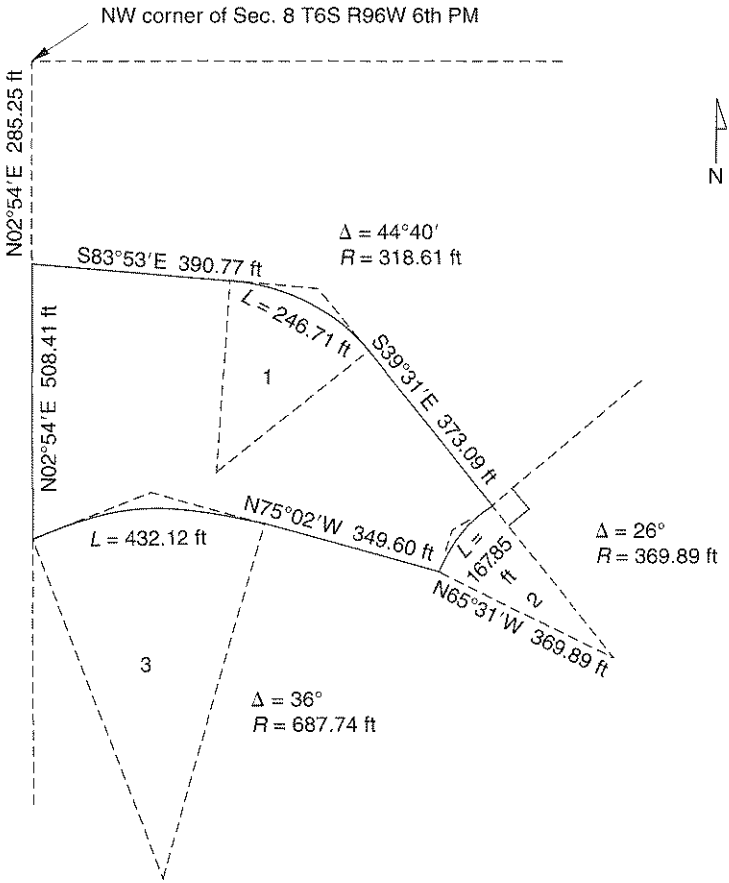
47. A description includes the phrase "...thence easterly 83.91 ft along said curve to the beginning of a compound curve." What is the relationship between the compound curves in the description?

(A) They share a common tangent line.
(B) They share a common radial line.
(C) Their shared radial and tangent lines are perpendicular to each other.
(D) A, B, and C are true.

Solution: Compound and reverse curves both share common radial and tangent lines, which are perpendicular to each other.

Answer is (D)

The following three problems refer to the illustration shown.



48. Which of the following descriptions best represents curve 1, the course preceding it, and the course following it?

(A) S83°53′E 390.77 ft to the beginning of a curve; thence easterly along said curve 246.71 ft; thence S39°31′E 373.09 ft

(B) south 83 degrees 53 minutes east 390.77 ft to the beginning of a tangential curve to the right; thence along said curve through an angle of 44 degrees 22 minutes; thence south 39 degrees 31 minutes 373.09 ft

(C) S83°53′E 390.77 ft to the beginning of a tangent curve concave to the SW having a radius of 318.61 ft; thence easterly and southeasterly along said curve; thence S39°31′E 373.09 ft

(D) S83°53′E 390.77 ft to the beginning of a tangent curve concave to the SW having a radius of 318.61 ft; thence easterly and southeasterly along said curve 246.71 ft; thence S39°31′E 373.09 ft

Solution: It is important to read carefully when considering alternative language for descriptions. While it is possible to describe the curve under consideration in several ways, only one of those given is complete. Missing data disqualify the remaining answers.

Answer is (D)

49. Which of the following statements is true of this description of curve 2?

S39°31′E 373.09 ft to the beginning of a nontangent curve concave to the SE having a radius of 369.89 ft; thence southwesterly and southerly along said curve through an angle of 26°00′ to the beginning of a nontangent line; thence along said line N75°02′W 349.60 ft.

(A) It is sufficient to adequately describe the curve and its relation to the two lines mentioned.

(B) The curve is described as nontangent to the first line, when it is in fact tangent.

(C) The curve is described as concave to the SE when it is concave to the east.

(D) Insufficient data are given by which to relate the curve to the lines.

Solution: The description is not adequate. Some phrase such as "to which point a radial line bears N39°31′W" is required at the end of the description of the first line in order to provide orientation for the curve. Without more information about its relative position, all that can be learned from the description is that the curve is not tangent to either line.

Answer is (D)

50. Which of the following statements is true of this description of curve 3?

> ...thence N75°02′W 349.60 ft to the beginning of a tangent curve concave to the south having a radius of 687.74 ft to which point a radial line bears N14°58′E; thence westerly 432.12 ft along said curve to its intersection with the west line of said Section 8.

(A) There is no mention of the central angle of the curve, so the description is insufficient.

(B) The length of the curve, 432.12 ft, is in contradiction with the central angle of 36° and the radius of 687.74 ft shown in the illustration.

(C) It is unnecessary to write "to which a radial line bears N14°58′E" when the curve is known to be tangent.

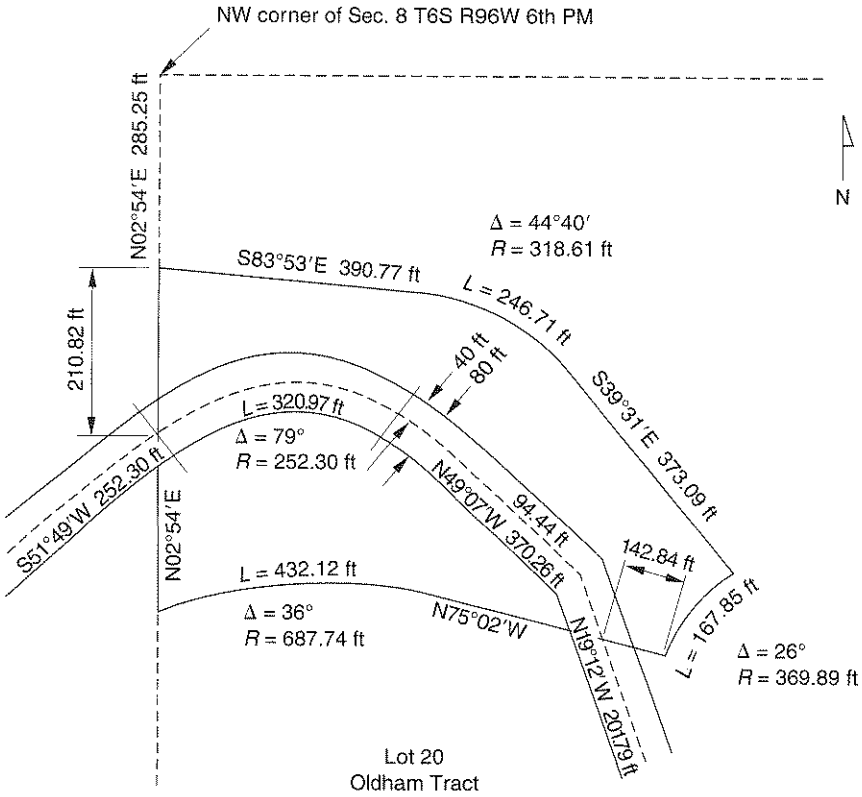
(D) The call "to its intersection with the west line of Section 8" may contradict the length of the curve given, 432.12 ft, and create an ambiguity that would void the deed.

Solution: The call to the intersection of the west line of the section obviates the need to recite the central angle of the curve. If the intersection does in fact contradict the length of the curve given, the record monument, the west line of the section, will prevail since it is superior in the normal priority of calls. The bearing of a radial line is redundant, since the curve has already been described as being tangent to the previous course.

Answer is (C)

DESCRIBING EASEMENTS

The following five problems refer to the illustration and description given.



An easement over a strip of land 80 ft wide over a portion of Lot 20 of the Oldham Tract in the county of Gunnison, state of Colorado, as per the plat filed in book 34, page 28, in the office of the county recorder of said county, the centerline of which is described as follows:

Beginning at a point on the south line of said lot N75°02′W 142.84 ft from the most southerly corner of said lot; thence N19°12′W 94.44 ft; thence N49°07′W 370.26 ft to the beginning of a curve concave to the south, which has a radius of 252.30 ft; thence along said curve 320.97 ft.

51. Which statement is correct concerning the caption of the description given?

(A) The caption should express the purposes and uses to which the easement is limited.

(B) The caption should mention the NW$\frac{1}{4}$ of Section 8.

(C) The phrase "the centerline of which" is not as good as "40 ft on either side of a line."

(D) The caption should end with the phrase "being more particularly described in detail as follows, to wit:"

Solution: The caption could most certainly be improved by defining the uses that the grantor of the easement intends to allow. The existing language could be construed to convey a fee interest in the strip of land, even though the use of the word *easement* contradicts that idea.

The phrase "40 ft on either side of a line" would confuse the arrangement of the easement. It would indicate that the 40 ft would fall on one or the other side of the described line, not both.

The two remaining answers would add redundant and unnecessary words to the description.

Answer is (A)

52. Which statement is correct concerning the beginning of the easement through the course, which is written "...thence N19°12′W 94.44 ft"?

(A) The phrase "the sidelines of said strip to be shortened or prolonged to terminate at the southerly line of said lot" should be included in the description to prevent the overlap and gap that will otherwise result at the beginning.

(B) The body of the description must commence at the SE corner of the lot, and begin at the centerline of the easement.

(C) The call "N19°12′W 94.44 ft" must end with "to a point" to be correct.

(D) Both A and B are true.

Solution: It is not vital that the description have a point of commencing and a point of beginning; the method used is adequate. There is no need to add the phrase "to a point" at the intersection of each pair of lines; it is self-evident that such an intersection is a point. However, the sidelines must be shortened or

prolonged to close on the south line of the lot. The termination of an easement described by its centerline will otherwise be considered normal to the centerline, creating undesirable gaps and overlaps.

Answer is (A)

53. Which statement is correct concerning the description through the course, which is written "to the beginning of a curve concave to the south, which has a radius of 252.30 ft"?

(A) The curve must be described as a curve to the left, not as "concave to the south."

(B) The width of the easement should be mentioned in the body of the description.

(C) The phrase "the sidelines of said easement to be shortened or prolonged to meet at angle point intersections" should appear somewhere in the description to prevent the overlap and gap that will otherwise result.

(D) Both A and B are true.

Solution: While curves are sometimes described by reciting their direction—that is, to the left or to the right—this is not the only sufficient method. The width of the easement is mentioned in the caption and need not also be mentioned in the body. However, language extending the sidelines to meet at the angle points is important and should be included in the description.

Answer is (C)

54. Concerning the description as a whole, which statement is correct?

(A) The phrase "the sidelines of said easement to be shortened or prolong to terminate at the westerly line of said lot" should be included in tl description.

(B) The phrase "to the west line of Section 8, T6S, R96W, of the 6th PM should be added to assure the termination of the centerline curve at tl west line of the section.

(C) The last direction used in the description should be "...thenc S51°49′W" with a distance carrying the easement beyond the west line Section 8.

(D) B and C are true.

Solution: Carrying the easement beyond the west line of the section and the terminating it with an exception is an effective way to achieve the desired endin of the lines.

Answer is (D)

55. The previous description was rewritten to begin, "An easement for pipelin purposes over a strip of land 80 ft wide." However, the grantor of the easemen wants to be sure he can continue to use the strip as a roadway to transpor timber on trucks across his property. The grantor has asked a surveyor to rewrit the easement again to guarantee his own ingress and egress. Which statement i correct concerning his request?

(A) It cannot be done; it would constitute an overburdening of the easement

(B) An easement can be written for only one purpose, not several.

(C) The use would conflict with the pipeline maintenance and cannot be written into the description.

(D) A property owner cannot hold an easement across his own property.

Solution: Easements can be written to include many purposes in one instrument. The considerations of overburdening and conflicting uses need not even be discussed since the grantor's request is not possible. He cannot own an easement over his own property; an easement right must be in the property of another.

Answer is (D)